

Master Services Agreement

This Master Services Agreement ("Agreement") is made by and between Smart Support, LLC DBA Octomaids (the "Company"), and the undersigned independent contractor (the "Contractor"). The Company and the Contractor may each be referred to herein as a "Party" and collectively as the "Parties."

Today's Date *



Contractor *

Address for Business *

1. Services

The Contractor agrees to perform the services described in Schedule A of this Agreement (the "Services"). The Company engages the Contractor to provide such Services on a non-exclusive, independent contractor basis.

2. Compensation and Expenses

2.1 Fees

The Contractor will receive **60% of the total amount collected** for each customer contract completed through the Company. This fee constitutes the Contractor's sole compensation. Payments are made biweekly, upon receipt of an invoice from the Contractor detailing services rendered.

2.2 Expenses

The Contractor is solely responsible for any costs incurred while performing the Services, including supplies, tools, and transportation. The Company will cover payment processing and credit card transaction fees related to customer payments.

2.3 Payment Terms

Invoices must be submitted in a timely manner and include documentation as reasonably requested by the Company. The Company agrees to pay all undisputed invoices within the biweekly payment period. Disputed amounts may be withheld until resolved.

The Company also reserves the right to withhold or delay payment for any customer job if the customer has withheld payment due to issues related to service quality, property damage, or incomplete work. Funds for that specific job will not be released until the matter is resolved to the Company's satisfaction. If it is determined that the Contractor is responsible for the issue, the Company may reduce or forfeit the Contractor's share of payment for that job.

Additionally, if a customer has not submitted payment to the Company, Octomaids reserves the right to delay payment to the Contractor for up to 60 days from the date of service or until customer payment is received—whichever occurs first. This delay shall not be considered a breach of contract or grounds for penalty.

1. Services

The Contractor agrees to perform the services described in Schedule A of this Agreement (the "Services"). The Company engages the Contractor to provide such Services on a non-exclusive, independent contractor basis.

2. Compensation and Expenses

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Nonrefundable Fees

The Contractor understands and agrees that any and all **sign-up fees, onboarding fees, deposits, or down payments paid to the Company** as part of the Contractor's engagement are **strictly nonrefundable** under any circumstances. These fees are used to cover administrative costs, onboarding procedures, background checks, marketing efforts, and scheduling coordination, and do not constitute a guarantee of job assignments or continued engagement.

By entering into this Agreement and submitting any such payment, the Contractor acknowledges and agrees to the **nonrefundable nature of these fees**, regardless of whether the Contractor chooses to continue working with the Company or terminates the relationship voluntarily or involuntarily.

3. Representations and Warranties

The Contractor represents and warrants that:

- They will comply with all applicable laws and regulations.
- The Services will meet industry standards and be performed professionally.
- All work will meet the specifications and expectations set forth by the Company.
- The Contractor maintains all required licenses and permits.
- The Services and deliverables will not infringe on any third-party intellectual property rights.

The Contractor acknowledges that payment of any onboarding or sign-up fee does **not guarantee a minimum number of cleaning assignments, specific income, or exclusive territories**. All work is assigned based on availability, demand, and performance.

4. Independent Contractor Relationship

The Contractor is an **independent contractor**, not an employee, partner, agent, or representative of the Company. The Contractor shall not represent otherwise and is not entitled to employee benefits.

Contractors must avoid disclosing or discussing their employment status during client interactions.

All **customer communications** regarding scheduling changes, service issues, or special requests must be directed to the Octomaids office. Contractors may not negotiate directly with clients under any circumstance.

5. Intellectual Property Rights

All materials, work product, and deliverables produced under this Agreement ("Work Product") are the sole property of Octomaids. The Contractor hereby assigns all rights, title, and interest in the Work Product to the Company.

If any pre-existing materials are used, the Contractor grants the Company a **non-exclusive, royalty-free, irrevocable license** to use those materials. No pre-existing materials may be incorporated without prior written consent.

6. Term and Termination

6.1 Term

This Agreement is effective as of the date signed and will remain in force for one (1) year, automatically renewing for additional one-year periods unless either Party provides 30 days' written notice of non-renewal.

6.2 Termination by Company

The Company may terminate this Agreement at any time, with or without cause, by providing the Contractor with 15 days' written notice.

6.3 Termination by Contractor

The Contractor may terminate this Agreement with 30 days' written notice to the Company. In the case of a material breach by the Company, the Contractor may terminate with **14 days' written notice** if such breach remains uncured after the Company has been notified in writing of the issue.

6.4 Post-Termination Customer Compensation Obligation

In the event the Contractor terminates this Agreement and wishes to discontinue working with customers originally introduced, assigned, or facilitated through Octomaids:

- The Contractor may **sell or transfer those customers only to another contractor currently under contract with Octomaids**, subject to:
 - **Prior written approval** from Octomaids, and

- **Agreement by the receiving contractor** to assume service responsibilities under the same terms and quality standards.
- Alternatively, **Octomaids retains the right of first refusal** and may choose to **purchase the customer relationships directly** at a mutually agreed-upon **fair market value**.
- If the Contractor chooses to retain and continue servicing any of these customers independently (outside of the Company), **Octomaids shall remain entitled to receive 40% of the gross revenue** collected from each such customer for a period of **24 months** following the date of contract termination.

Failure to comply with this provision shall constitute a **material breach** of this Agreement and will entitle Octomaids to pursue **injunctive relief, monetary damages, and reimbursement of all legal and enforcement costs**.

Grounds for Immediate Termination

Contractor acknowledges and agrees that the following actions shall constitute **grounds for immediate termination** of this Agreement, at the sole discretion of Octomaids:

- Soliciting clients in violation of the Non-Solicitation of Clients clause
- Sharing or misusing confidential or proprietary information of Octomaids
- Engaging in conduct that damages the reputation or operations of Octomaids
- Failure to comply with professional standards outlined in this Agreement
- Multiple customer complaints regarding quality of service.

7. Insurance

The Contractor shall, at all times during the term of this Agreement, maintain and keep in full force and effect appropriate insurance coverage, naming Octomaids as an additional insured.

The Contractor shall provide proof of such insurance to the Company upon execution of this Agreement and thereafter upon request.

Failure to maintain valid insurance coverage shall constitute a material breach of this Agreement.

In the event the Contractor's insurance is canceled, expires, or otherwise becomes invalid, the Company, in its sole discretion, reserves the right to reassign any and all customers to other contractors or teams who maintain valid insurance coverage, in order to mitigate liability exposure to the Company.

8. Non-Interference with Business

8.1 Non-Solicitation

During the term of this Agreement and for **24 months following termination**, the Contractor agrees not to:

- Solicit or hire the Company's employees,
- Interfere with existing client relationships,
- Induce customers or vendors to cease doing business with Octomaids,
- Share personal or business contact information (e.g., phone, email, business cards) with Octomaids' clients.

Contractor acknowledges that during the course of their engagement with Octomaids, they may have access to **confidential and proprietary information**, including but not limited to:

- Client names and contact information
- Pricing structures
- Internal business processes
- Marketing strategies
- Supplier and vendor relationships
- Operational systems and tools

Contractor agrees not to disclose, use, reproduce, or distribute any such confidential information for personal gain or to benefit any competitor of Octomaids, either during or after the term of this Agreement.

Definition of Client: Any individual or business entity who has received services from Octomaids at any time during the Contractor's engagement.

Liquidated Damages: In the event of a violation of this clause, Contractor agrees to pay **liquidated damages of \$3,500 per client per violation**, or actual damages incurred by Octomaids, whichever is greater. In addition, Octomaids shall be entitled to recover all reasonable legal fees and costs incurred in enforcing this provision.

8.1(d) Customer Poaching Prohibition

The Contractor agrees not to solicit, accept, or provide cleaning services—directly or indirectly—to any Octomaids customer for 24 months after their last assigned service date. This includes using another business name, offering referrals, or circumventing Octomaids' systems.

Any violation shall be considered a **material breach** and will result in **legal action and immediate termination**.

8.2 Non-Disparagement

The Contractor shall not make any disparaging remarks about Octomaids or its affiliates during or after the term of this Agreement.

9. Indemnification

The Contractor agrees to indemnify and hold harmless the Company from any legal claims, damages, or losses arising from:

- Willful or negligent acts,
- Breach of this Agreement,
- Intellectual property violations.

The Company may deduct indemnification-related costs from payments due to the Contractor.

10. Customer Ownership

All customers serviced under this Agreement are the **exclusive property of Octomaids**. Contractors may not claim ownership, nor may they sell, transfer, or continue servicing these clients independently without the Company's consent.

10.1 Legal Remedies for Customer Interference

Any unauthorized attempt to solicit, retain, or transfer Octomaids customers outside of the approved channels will be considered a material breach. Octomaids is entitled to:

- Injunctive relief,
- Monetary damages,
- Reimbursement of legal and enforcement costs.

Dispute Resolution

The parties agree to attempt to resolve any dispute arising under or relating to this Agreement through **good faith mediation**. If such mediation does not resolve the dispute, the matter shall be settled by **binding arbitration** in accordance with the rules of the American Arbitration Association.

The arbitration shall take place in **Washington or Oregon** (depending on the state of the relevant client location), unless otherwise agreed in writing.

Each party shall bear its own legal fees and costs, unless otherwise awarded by the arbitrator.

*Octomaids retains a vested ownership interest in all customer relationships for up to **24 months** following the termination of this Agreement. Should the Contractor wish to sell or transfer those relationships, they may do so only to another currently contracted Octomaids service provider with prior written approval, or Octomaids may choose to purchase the accounts at a mutually agreed-upon fair market value.*

11. Cleaning Standards and Performance

Octomaids reserves the right to reassign customers or limit opportunities if a Contractor:

- Misses appointments or arrives late,
- Fails to meet quality standards,
- Causes property damage.

Contractors may be required to reimburse replacement teams or cover losses. High-performing contractors may receive additional job opportunities.

12. Miscellaneous

12.1 Governing Law

This Agreement is governed by the laws of the **State of Washington**. Any disputes shall be resolved in the **courts of Clark County, WA**, and the prevailing party is entitled to attorney's fees and court costs.

12.2 Entire Agreement

This document is the full and complete Agreement and supersedes all prior discussions or agreements.

12.3 Assignment

Contractors may not assign this Agreement without prior written consent. The Company may assign its rights and obligations freely.

12.4 Modifications

All changes must be in writing and signed by both Parties.

12.5 Severability

If any part of this Agreement is deemed invalid, the remainder shall remain in full force.

13. Damage Responsibility and Compensation

The Contractor is fully responsible for damage caused by themselves, their staff, or subcontractors. This includes:

- **Repair/replacement costs,**

Contractor's failure or refusal to timely repair the damage or reimburse the costs as required above constitutes a material breach of this Agreement. Upon such breach, and in addition to any other rights or remedies at law or in equity, Company may:

- a) Withhold and/or set off any amounts due to Contractor by the amount of the claim, repair/replacement costs, and any related administrative or third-party expenses;
- b) Arrange for repair or replacement itself and recover all associated costs from Contractor;
- c) Make claim against Contractor's insurance and/or bond;
- d) Terminate this Agreement for cause immediately on written notice; and
- e) Seek indemnification, damages, attorneys' fees, and costs to the fullest extent permitted by law.

- **Reimbursement to Octomaids** for refunds, service credits, or other damages.

Octomaids retains its standard 40% compensation from the original service. Ongoing issues may result in contract termination.

Schedule A – Description of Services

Services Include:

- Residential house cleaning
- Deep cleaning
- Move-in/move-out cleaning
- Airbnb and short-term rental cleaning
- Light commercial and office cleaning
- Specialty services as approved

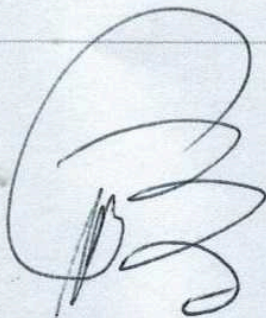
Expectations:

- Use of eco-friendly products (when requested)
- Follow Octomaids' service checklists

- Maintain professionalism
- Prompt reporting and communication

Signature

Signature *



Company 'Smart Support LLC'

Name: NORMA DUQUETTE

Title: Managing Member

Contractor Signature *



[clear](#)

Contractor: Print Name *

Elizabeth Quiroz Garcia

Signature *



[clear](#)

Title *

Owner

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